

TENTATIVE RULING

Andres Ontiveros, by and through his Guardian Ad Litem, Cecilia Sinohui

v.

County of Monterey dba Natividad Medical Center

24CV000458

Minor's Compromise Petition

Hearing Date: July 24, 2026

After reviewing the unopposed minor's compromise petition filed by Cecilia Sinohui, acting as guardian ad litem for three-year-old Claimant Andres Ontiveros ("Claimant"), the Court hereby **GRANTS** the petition. The Court will sign the proposed order approving Claimant's net settlement proceeds, totaling \$2,004,789.91, and authorizing the investment of \$1,000,000 of these funds into a single-premium deferred annuity, which will be accessible only with the Court's approval. The remaining funds will be paid or transferred to the trustee of a Special Needs Trust.

The matter is set for hearing on October 23, 2026, at 8:30 a.m. in Department 14 to (1) show proof of the Claimant's funds being invested into a single-premium deferred annuity, (2) discuss the status of the Special Needs Trust, and (3) discuss when to set this case for a dismissal hearing.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.